

Amendment No. 1 to HB1706

Howell
Signature of Sponsor

AMEND Senate Bill No. 1587*

House Bill No. 1706

by deleting all language after the enacting clause and substituting instead:

SECTION 1. Tennessee Code Annotated, Section 55-50-403, is amended by adding the following as a new subdivision:

(5) In which the employee is unlawfully present in the United States.

SECTION 2. Tennessee Code Annotated, Section 55-50-403, is amended by designating the existing language as subsection (a) and adding the following as new subsections:

(b)

(1) It is an offense for a direct employer to knowingly employ and allow a person unlawfully present in the United States to operate a commercial motor vehicle in this state.

(2) It is an offense for a person who is unlawfully present in the United States to operate a commercial motor vehicle in this state.

(3) A violation of this subsection (b) is a Class A misdemeanor.

(c) A law enforcement officer who arrests a person for a violation of subdivision (b)(2) shall notify the officer's law enforcement agency of the arrest, and the agency shall ensure that federal immigration authorities are notified, either through the agency's participation in the 287(g) program pursuant to the Immigration and Nationality Act (8 U.S.C. § 1357(g)) or by contacting the centralized immigration enforcement division of the department of safety, created in § 4-3-2014.

(d) Subsection (b) does not apply to a person or entity that does not employ the person operating the commercial motor vehicle and does not have the legal authority to verify employment authorization for that person.

(e) For purposes of this section:

(1) "Direct employer":

(A) Means the person or entity that hires, compensates, and exercises direct supervisory control over an individual operating a commercial motor vehicle; and

(B) Does not include customers, shippers, consignees, brokers, or entities that contract for transportation services, but do not directly employ the individual operating a commercial motor vehicle; and

(2) "Unlawfully present in the United States" means a person who is not in lawful immigration status, as defined in 8 CFR 245.1(d), and includes:

(A) A person who entered the United States without inspection and admission or parole; and

(B) A person whose lawful immigration status expired or was rescinded, revoked, or otherwise terminated.

SECTION 3. Tennessee Code Annotated, Title 55, Chapter 50, Part 4, is amended by adding the following as a new section:

55-50-419. Strict liability for accidents committed by illegal aliens.

(a) A direct employer who knowingly employs and permits a person unlawfully present in the United States to operate a commercial motor vehicle, and any official or employee of any state who recklessly issues a commercial driver license to a person unlawfully present in the United States, are strictly, jointly, and severally liable to any person who suffers personal injury or property damage caused by the unlawfully present person's operation of a commercial motor vehicle. A person so injured is entitled to recover:

- (1) Compensatory damages in accordance with § 29-39-102, including, but not limited to, noneconomic damages, as defined in § 29-39-101;
- (2) Punitive damages, as provided in § 29-39-104, if appropriate; and
- (3) Court costs and reasonable attorney's fees.

(b) A direct employer is presumed to have not acted knowingly if the direct employer is in compliance with the employment and verification requirements of §§ 50-1-103(b) and (d) and 50-1-703.

(c) This section does not impose liability on a person or entity that does not employ the person operating the commercial motor vehicle and does not have the legal authority to verify employment authorization for that person.

(d) Notwithstanding any other law, the law of this state applies to any tort action arising out of an unlawfully present person's operation of a commercial motor vehicle in this state. Notwithstanding any other law, any contractual choice-of-law provision that requires or purports to require application of the laws of a different jurisdiction is void as against public policy, and is not enforceable in any court.

(e) This section creates potential claims against employers that may not exist prior to July 1, 2026. Accordingly, unless policy provisions of an employer's liability insurance policy expressly provide coverage for a claim created by this section, an employer's liability insurance policy must not be construed to cover an employer's liability arising under this section. This section does not alter or modify coverage afforded by an employer's liability policy for a claim that predates July 1, 2026.

(f) For purposes of this section:

(1) "Direct employer":

(A) Means the person or entity that hires, compensates, and exercises direct supervisory control over a person operating a commercial motor vehicle; and

(B) Does not include customers, shippers, consignees, brokers, or entities that contract for transportation services, but do not directly employ the person operating a commercial motor vehicle; and

(2) "Unlawfully present in the United States" means a person who is not in lawful immigration status, as defined in 8 CFR 245.1(d), and includes:

(A) A person who entered the United States without inspection and admission or parole; and

(B) A person whose lawful immigration status expired or was rescinded, revoked, or otherwise terminated.

SECTION 4. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.